

1.

CASE #	CASE NAME	HEARING NAME
CVRI2102535	CITY OF LAKE ELSINORE vs MITCHELL	MOTION LEAVE TO FILE CROSS- COMPLAINT

Tentative Ruling:

Motion is Off Calendar.

The Defendant has filed an appeal. The Court of Appeal has issued a Palma notice directing that the proceedings be Stayed pending determination of the appeal on the merits.

Matter is set for a Status Conference on June 9, 2027, at 8:30am, D-4.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2303538	CALDERON vs CITY OF MENIFEE	MOTION FOR LEAVE TO AMEND REQUEST FOR ADMISSION, SET TWO RESPONSE TO REQUESTS FOR ADMISSION, SET TWO, NO. 50 (ERRONEOUSLY NUMBERED 51)

Tentative Ruling:

GRANT

The City has established an excusable mistake in its response to RFA2 No.50 and Plaintiff will not be unduly prejudiced by the amended response.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506588	LAMBERT vs BMW OF NORTH AMERICA, LLC	MOTION TO COMPEL DEFENDANT'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES NOS. 2, 4, 6, 7, 9, 11 AND 13;

Tentative Ruling:

GRANT as to Special Interrogatories nos. 2, 6, 9,11 and 13.

BMW's response to no. 2 is not responsive to the call of the question. For no. 6, if the question requires reference to another document, the document should be identified and its contents summarized. In no. 9, BMW's response is vague. Does BMW maintain there are no defects that are responsive, or does BMW maintain only there are no

defects that would “substantially impair its use, value, or safety.” The responses to nos. 9 and 13 are similarly unclear. Special Interrogatory 11 is a contention interrogatory and does not call for a legal conclusion.

DENY as to nos.3 and 4. These interrogatories are overbroad.

Further responses due within 20 days.

No sanctions.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506588	LAMBERT vs BMW OF NORTH AMERICA, LLC	MOTION TO COMPEL DEFENDANT’S FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS NOS. 1-15

Tentative Ruling:

GRANT as to RFP’s nos. 1-10. and 14-15.

BMW’s responses are unclear as to whether BMW is complying in whole or in part, or whether any documents are being withheld. BMW needs to make the scope of its production clear, i.e., is it only for the term of the lease? For no. 6, BMW does not justify its claimed privilege-BMW must provide a privilege log identifying communications that are being withheld.

DENY as to no. 13. This request is unintelligible. It is unclear what Plaintiff is requesting here.

Further responses due within 20 days.

No sanctions.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506588	LAMBERT vs BMW OF NORTH AMERICA, LLC	MOTION TO COMPEL DEFENDANT’S FURTHER RESPONSES TO FORM INTERROGATORIES NOS. 15.1 AND 17.1

Tentative Ruling:

DENY the motion as to Form Interrogatories 15.1 and 17.1. The responses to these interrogatories are sufficient.

No sanctions.